

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573

Docket No. 25-31

NIELSEN & BAINBRIDGE, LLC,
Complainant,
v.
ORIENT OVERSEAS CONTAINER LINE LIMITED
AND OOCL (EUROPE) LIMITED,
Respondents.

**COMPLAINANT’S RESPONSE IN OPPOSITION TO RESPONDENTS’ MOTION FOR
DISMISSAL OF REPARATIONS SEEKING DOUBLE RECOVERY**

Complainant Nielsen & Bainbridge, LLC (“NBG”) respectfully submits this response in opposition to the Motion for Dismissal of Reparations Seeking Double Recovery (the “Motion”) filed August 13, 2026 by Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (“OOCL”). The Motion should be denied in its entirety.

PRELIMINARY STATEMENT

The Motion’s incorrect premise is that if the same replacement shipment presently appears in NBG’s shortfall damages appendices of two ongoing proceedings, the complainant must be seeking to be paid twice for the same thing. That assumption misunderstands what the replacement shipments are. They are not the injury. They are the yardstick used to measure a distinct injury—each carrier’s separate failure to carry the volume it separately committed to carry. *Even if every shipment in NBG’s appendices appeared in all three dockets, and even if all three proceedings were fully adjudicated and every award actually paid, NBG would not have recovered twice for a single injury.* Part II, below, explains why.

Three further purported defects independently require denial. *First*, OOCL identifies not one container, shipment, or dollar of reparations that NBG has sought twice; its entire showing consists of deposition answers of “It may be,” and “Not offhand, no”. Motion at 3. *Second*, this argument—advanced by these same Respondents on this same theory—was rejected four months ago in *20230930-DK-Butterfly-I, Inc. v. Orient Overseas Container Line Ltd.*, FMC Docket No. 23-02 (FMC ALJ Apr. 24, 2026) (Initial Decision), 2026 WL 1285696, at *13. *Third*, OOCL’s lead authority holds the opposite of what OOCL claims it holds: on the very page cited, the tribunal *denied* a double-recovery-based request for dismissal, awarded *full* reparations, and cured the overlap by ordering the return of an amount *actually received*. *TCW, Inc. v. Evergreen Shipping Agency (Am.) Corp.*, FMC Docket No. 1966(I) (FMC Feb. 19, 2021) (Initial Decision of Small Claims Officer), 2021 WL 794708, at *28, *adopted in its entirety*, 2022 WL 18068977, at *1 (FMC Dec. 29, 2022) (Order Affirming the Initial Decision), *vacated on other grounds by Evergreen Shipping Agency (Am.) Corp. v. Fed. Mar. Comm’n*, 106 F.4th 1113 (D.C. Cir. 2024); *accord TCW, Inc. v. Evergreen Shipping Agency (Am.) Corp.*, 2025 WL 516256 (FMC Feb. 13, 2025) (Order on Remand) (reaffirming the reparations award without re-addressing the double-recovery question).

ARGUMENT

I. The Motion Never Identifies Which Kind of Dispositive Motion It Is, and It Fails as Either One.

The Commission’s rules recognize distinct species of dispositive motion, including “a motion for decision on the pleadings,” a “motion for summary decision or partial summary decision,” and a “motion to dismiss all or part of a proceeding.” 46 C.F.R. § 502.69(g). The Motion does not say which it is. It is styled a motion for “dismissal,” it is brought “[p]ursuant to the rules of the Federal Maritime Commission at 46 C.F.R. 502.70,” Motion at 1, and it argues from

deposition testimony and from filings in other dockets. Whichever footing OOCL means to occupy, the Motion fails, and it fails for a different reason on each.

A. As a motion directed to the pleadings, the Motion never identifies a pleading.

“In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” 46 C.F.R. § 502.12. A motion to dismiss therefore tests the sufficiency of the Complaint’s allegations, which must be construed “in the light most favorable to the plaintiff.” *Combustion Store Ltd. v. UniGroup Worldwide, Inc.*, FMC Docket No. 15-02 (FMC Oct. 9, 2015) (Order Denying Motion to Dismiss), 2015 WL 6110609, at *7. On that footing the Motion is a non-starter. It does not quote, cite, or identify a single paragraph of the Complaint; it does not contend that any allegation is deficient; and it does not say what NBG would have to plead to cure the supposed defect. OOCL’s request that the Presiding Officer “dismiss those allegations of the [] Complaint” for which reparations are also sought elsewhere, Motion at 5-6, presupposes a fact that appears nowhere in the pleadings and that OOCL asks the tribunal to develop after filing. Nothing in the Complaint says that any shipment is cross-listed, and on a pleadings motion nothing outside it may supply that premise.

B. As a motion for summary decision, the Motion is unsupported, and the record it would be decided on is not closed.

If instead the Motion is one “for summary decision or partial summary decision,” 46 C.F.R. § 502.69(g), it had to be accompanied by “a statement of material facts with exhibits as appropriate,” *id.* § 502.70(a). OOCL’s entire showing on the dispositive question is two answers from a single deposition: “It may be,” and “Not offhand, no.” Motion at 3. A witness’s inability to recall a figure is not evidence of that figure, and a movant does not carry its burden by establishing that it does not know whether its own premise is true.

The posture compounds the failure. Summary disposition is warranted only “after adequate time for discovery.” *Celotex Corp. v. Catrett*, 477 U.S. 317, 322 (1986). There has been no such time here, because the evidentiary record on damages remains open by design: expert reports are still being served, discovery remains open, and there are pending interrogatories to be answered. The Commission’s rules contemplate exactly this sequence. An interrogatory “is not objectionable merely because it asks for an opinion or contention that relates to fact or the application of law to fact, but the presiding officer may order that the interrogatory need not be answered until designated discovery is complete, or until a prehearing conference or some other time.” 46 C.F.R. § 502.145(a)(2). A rule that lets a complainant defer its final contentions until discovery is complete cannot also authorize dismissal because those contentions were not final months earlier. Where a party cannot yet present facts essential to its position because discovery remains open, the course is to defer or deny the motion, not to grant it. *See Fed. R. Civ. P. 56(d)*.

OOCL’s own alternative request settles the matter. Having asked for dismissal, OOCL asks in the alternative that NBG “be required to produce the same type of supplemental appendices as ordered in *BBBY v. Yang Ming* and that the Presiding Officer subsequently dismiss” allegedly overlapping claims. Motion at 5. A movant who must first obtain further discovery, or have the tribunal assemble and compare charts across three dockets, has conceded that the present record cannot support the relief it seeks.

C. In all events, this proceeding is at the liability stage.

Even on a complete record, dismissal would be the wrong remedy at the wrong time. “From a liability perspective, the question is whether a respondent failed to carry containers in violation of the Shipping Act. If so, at the reparations stage, the question is what reparations amount would provide compensation with a reasonable degree of certainty.” *BBBY v. OOCL*, 2026 WL 1285696, at *163. The Presiding Officer may determine whether OOCL failed to carry its committed volume

on the record developed here and address quantum afterward, when amounts actually awarded and actually paid in Docket Nos. 25-02 and 25-30 are known rather than hypothesized. The same Presiding Officer presides over multiple NBG proceedings and has ample authority to sequence the issues, including by holding the reparations calculation in abeyance. *See* 46 C.F.R. § 502.25(b)(3)–(4).

II. The Replacement Shipments Are a Measuring Stick, Not the Injury; Overlap Is Not Double Recovery Even If Every Parallel Proceeding Were Fully Adjudicated and Paid.

In addition to failing from a procedural and timing perspective, the Motion also fails on the merits because OOCL never identifies the injury for which NBG is supposedly to be compensated twice. Once the injury is correctly identified, the premise of the Motion collapses—and it collapses without regard to what happens in the two proceedings brought by NBG at Docket Nos 25-02 and 25-30.

A. The injury is each carrier’s failure to carry its committed volume; the NVO/FF shipments merely quantify it.

The Shipping Act entitles a complainant to reparations “for actual injury caused by a violation of this part.” 46 U.S.C. § 41305(b). Where a carrier fails to honor a minimum quantity commitment, the violation is the failure to carry, and the actual injury is the incremental cost NBG bore to move the volume the carrier left behind. The spot-market and NVO/freight-forwarder shipments in NBG’s appendices are not that injury; they are records of what NBG paid, and they serve as the instrument by which the injury is most easily priced. Chief Judge Wirth drew that distinction in Docket No. 23-02, in response to OOCL:

BBBY’s charges from NVO/FFs to transport containers are relevant to *quantifying* the actual injury. *This data is not specific to any particular carrier*, just as cargo is not specific to any particular carrier, but rather actual data regarding BBBY’s costs. Thus, *it would be odd if these actual costs incurred by BBBY varied from one case to the next.*

20230930-DK-Butterfly-1, Inc. v. Orient Overseas Container Line Ltd., FMC Docket No. 23-02 (FMC ALJ Apr. 24, 2026) (Initial Decision), 2026 WL 1285696, at *12 (emphasis added). If the replacement-cost data “is not specific to any particular carrier,” its use in the OOCL docket does not consume it, and its use in the Evergreen, Yang Ming, or ONE dockets does not consume it either. It is NBG’s cost data, and if NBG’s costs are to be stated accurately it *must* be the same in every case. The same Initial Decision separated liability from measurement:

From a ***liability perspective***, the question is whether a respondent failed to carry containers in violation of the Shipping Act. If so, at the ***reparations stage***, the question is what reparations amount would provide compensation with a reasonable degree of certainty. Thus, ***when a carrier unlawfully fails to ship containers, it has given up responsibility for and control over the costs associated with shipping that container.***

Id. at *163 (emphasis added).

Three consequences follow, each of which defeats the Motion on its own terms.

i. Tracing individual containers is not required.

OOCL argues that NBG “cannot establish a temporal connection” between particular replacement bookings and particular carriers. Motion at 5. Chief Judge Wirth confronted that identical (incorrect) contention—that a complainant “must connect a request to book a specific container to a denial to ship that particular container”—and answered it in one sentence: “Commission precedent does not support this approach.” 2026 WL 1285696, at *162. Containers are fungible; carriers commit to “a total number of containers of a particular size,” so “the violation is based on the number of containers out of the MQC that a respondent failed to transport ... not on the journey of a particular container.” *Id.* The Commission has likewise rejected the same “excessively high standard of proof,” refusing to require a complainant to “tie each spot shipment to a prior request that [the carrier] carry the shipment.” *MCS Indus., Inc. v. MSC Mediterranean Shipping Co. S.A.*, FMC Docket No. 21-05 (FMC July 16, 2024) (Order Affirming Initial Decision

on Remand), 2024 WL 3514613, at *8, *petitions for review denied sub nom. MSC Mediterranean Shipping Co. S.A. v. FMC*, 141 F.4th 222 (D.C. Cir. 2025).

ii. Each respondent's exposure is already capped by its own shortfall.

Because “the violation is based on the number of containers out of the MQC that a respondent failed to transport,” 2026 WL 1285696, at *162, OOCL will **only** answer for the space that OOCL failed to offer. Cross-listing a replacement shipment does not enlarge OOCL’s shortfall by a single container, and so cannot enlarge OOCL’s exposure by a single dollar. Over-recovery is structurally impossible; dismissing cross-listed shipments would not prevent it but would push NBG *below* its actual injury.

iii. These are separate injuries, so the one-satisfaction rule has nothing to operate on.

The one-satisfaction doctrine “operates to prevent double recovery, or the overcompensation of a plaintiff for a single injury.” *BUC Int’l Corp. v. Int’l Yacht Council Ltd.*, 517 F.3d 1271, 1277 (11th Cir. 2008) (emphasis added). It rests on the principle that “[u]nder elementary principles of tort law a plaintiff is entitled to only one recovery for a wrong,” and it exists so that a plaintiff cannot “recover multiple times **for a single injury**.” *Id.* (emphasis added). It is not a rule about who may be sued, and it is not a defense to liability. NBG contracted separately with OOCL, Evergreen, Yang Ming, and Ocean Network Express; each made its own commitment, each is alleged to have breached its own, and each breach left its own MQC space inaccessible to Complainant. These are separate injuries, not the same injury and, thus, the one-satisfaction doctrine does not apply. OOCL says as much itself: “there is no claim in any of the complaints that the multiple respondents are joint violators of the Shipping Act.” Motion at 3. That concession defeats the Motion rather than supporting it. Where the injuries are distinct, paying full compensation for each is not overcompensation at all.

B. A Contrary Rule Would Make Reparations Arbitrary and Based on a Complainant's Whims or a Tribunal's Decision Speed.

If a replacement shipment used to price one carrier's shortfall were thereby disqualified from pricing another's, NBG would have to allocate its invoices among respondents—assigning its expensive spot bookings to one carrier and its cheap ones to another. Awards would then turn on the complainant's allocation choices or the speed of a tribunal's decision rather than on each carrier's performance. Worse, the incentives could become inverted: a complainant could choose to charge a trivial shortfall with its costliest freight and a massive shortfall with its cheapest, so the carrier that failed most would face the smallest per-container exposure and vice-versa. Or, a case regarding a larger shortfall may take longer for a tribunal to decide than a case regarding a small shortfall, so that by the time the large shortfall case is decided the most expensive containers have already been consumed by the case with the smaller shortfall. Keeping the measurement constant and tied to the actual costs the complainant was forced to pay for FFO/NVOCC carriage on contracted lanes during peak pricing conditions, and letting each carrier's own shortfall volume fix its own exposure, avoids that result. It is also the only approach consistent with the observation that “it would be odd if these actual costs incurred by BBBY varied from one case to the next.” 2026 WL 1285696, at *12.

III. The Motion Identifies No Duplicated Shipment and Asks the Presiding Officer to Dismiss Claims OOCL Cannot Describe.

A motion to dismiss “all or part of a proceeding,” 46 C.F.R. § 502.69(g), must identify the part sought to be dismissed. The Motion does not. It nowhere states which allegations of the Amended Complaint should be dismissed, which containers appear in more than one docket, how many there are, or what quantum of reparations is purportedly improper or duplicative. It offers a

deposition answer of “It may be,” Motion at 3, and the observation that NBG “is represented by the same law firm that represents BBY,” *id.* at 5 n.5.

That showing does not satisfy Rule 69(e)’s requirement that a motion state “the facts claimed to constitute the grounds supporting the relief requested,” 46 C.F.R. § 502.69(e), or Rule 70(a)’s requirement of “a statement of material facts with exhibits as appropriate,” *id.* § 502.70(a), for the reasons given in Part I. What makes the omission telling is that it is not for want of information. OOCL has held the appendices since March 30, 2026, when NBG served them in supplementing its response to OOCL’s Interrogatory No. 11; it deposed NBG’s corporate witness on August 5, 2026; and it conferred with NBG about this very Motion on August 3, 2026. Motion at 1 n.1, 2, 3. OOCL quotes two of those appendices by name in its own Motion. Motion at 2. If a single container appeared on more than one of them, OOCL could have said so and identified it. It does not, because the comparison it asks the Presiding Officer to perform is one OOCL has been free to perform for five months.

The requested relief confirms the defect. OOCL asks the Presiding Officer to collect the “appendices” (without establishing that such appendices exist) from three dockets for *in camera* review, “compare the alleged damages in each[,] and dismiss as to OOCL any reparations also sought against one or more other respondents.” Motion at 5. Rule 70 does not contemplate a dispositive motion whose material facts are to be assembled *by the tribunal after filing*.

IV. The Same Argument Was Rejected in Docket No. 23-02, and No Recovery Exists Anywhere in NBG’s Proceedings.

In Docket No. 23-02, OOCL sought to reopen discovery to compare a complainant’s appendices across dockets, reasoning that “a comparison of the appendices in Yang Ming and OOCL’s cases ... demonstrate BBY is claiming damages for the same shipments from multiple parties.” 2026 WL 1285696, at *12. Chief Judge Wirth rejected that argument for the reasons

discussed in Part II, and then rejected the double-recovery theory directly: “OOCL’s arguments regarding the one satisfaction rule and prohibition of double recovery do not apply to this proceeding. As BBY argues, there has not been any recovery in any of the BBY cases before the Commission, so there is no risk of double recovery in this proceeding.” *Id.* at *13.

That premise holds here in stronger form. No Initial Decision has issued in FMC Docket No. 25-02, in FMC Docket No. 25-30, or in this proceeding; no respondent has been found liable; no reparations have been awarded; and NBG has received no payment from anyone on account of any shipment in any appendix. The Initial Decision in Docket No. 23-02 is itself subject to pending exceptions and thus “inoperative until the Commission determines the matter,” 46 C.F.R. § 502.227(a)(5), so no recovery has occurred in the BBY proceedings either. Dismissing claims now to forestall a possibility contingent on future events in three separate dockets inverts the ordinary sequence: liability, then reparations, then adjustment for actual duplication if it ever becomes necessary.

V. Commission Precedent Treats Double Recovery as a Remedy-Stage Adjustment Tied to Amounts Actually Received, Not as a Ground for Dismissal.

Emphatically, the pending NBG related cases involve different injuries against each carrier: that carrier’s failure to offer sufficient space to meet NBG’s MQC. Compensating multiple injuries cannot result in double recovery. Nonetheless, if the Presiding Officer were to find that double recovery is present, OOCL’s argument would still fail because double recovery should be remedied on the damages side, not the liability side.

OOCL cites *TCW* at *28 for the proposition that dismissal is appropriate because Commission precedent “generally prohibits double recovery.” Motion at 4. That is not so. The respondents there sought dismissal on precisely this ground—arguing the claimant had been

reimbursed by a third party—and the Small Claims Officer refused to dismiss because the double recovery could be cured post-damages award:

Accordingly, I find that Claimant is entitled to reparations in the amount of \$510.00, the amount it paid for the unjust and unreasonable per diem charges ... However, to avoid a double recovery Claimant is directed to return to Yamaha the per diem payment it received from Yamaha.

2021 WL 794708, at *28. The Commission affirmed and adopted that decision “in its entirety,” 2022 WL 18068977, at *1, adding that the overlap concern was “rejected ... as a defense to liability” and cured instead by ordering a return of what the claimant had received, *id.* at *7, and that a respondent “cannot avoid responsibility by claiming Claimant was later reimbursed,” *id.* at *8. The D.C. Circuit later vacated that order on an unrelated ground—the Commission’s incentive-principle analysis of whether the charges themselves were unreasonable. *Evergreen Shipping Agency (Am.) Corp. v. Fed. Mar. Comm’n*, 106 F.4th 1113, 1118 (D.C. Cir. 2024). On remand, however, the Commission “reincorporate[d] its prior findings affirming that Claimant is entitled to reparations,” citing the very pages relied on here, and again directed payment of the full award. 2025 WL 516256, at *11 (citing 2022 WL 18068977, at *8–9). Neither the DC Circuit’s ground of decision nor the Commission’s order on remand disturbed the reasoning set out above. Double recovery is therefore not a defense to liability; it is a remedy-stage adjustment, and it operates on amounts actually received.¹

The rest of the case law cited by OOCL is of no effect. In *Hangzhou Qianwang*—also cited by OOCL—a settlement actually paid in a Chinese court “w[ould] not eliminate ... [the] ability to

¹ Crucially, NBG’s claims as presented to OOCL in discovery also contain, through Appendix A to NBG’s Second Supplemental Responses to OOCL’s First Set of Interrogatories, all containers shipped by NBG for which NBG has information, including whether those containers were shipped pursuant to service contracts or on the spot market, with information regarding shipping dates, relevant lanes, and cost information. *See* Appendix A of Complainant’s Second Supplemental Objections and Responses to Respondents’ First Set of Interrogatories, *Nielsen & Bainbridge, LLC v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, FMC Docket No. 25-31 (August 28, 2026).

recover reparations in this proceeding”; the complainant was “not entitled to double damages, however, so that the amount that RDD Freight has already paid ... w[ould] be subtracted from the amount of the reparations claim.” *Hangzhou Qianwang Dress Co. v. RDD Freight Int’l Inc.*, FMC Docket No. 17-02 (FMC Aug. 29, 2018) (Initial Decision), 1 F.M.C.2d 158, 2018 WL 4191529, at *14. And in *Anchor Shipping*, the Commission *vacated* a dismissal even though the complainant had already obtained—and been paid—a \$381,880.59 arbitration award addressing “both contractual and Shipping Act issues” on the same facts. That the award existed and “ha[d] [been] paid” were “facts alone ... not sufficient” to warrant dismissal; the complaint “was prematurely dismissed.” *Anchor Shipping Co. v. Aliança Navegação E Logística Ltda.*, FMC Docket No. 02-04 (FMC May 10, 2006) (Order Vacating ALJ’s Dismissal Order and Remanding Proceeding for Further Adjudication), 2006 WL 2007808, at *1, *9, *10. As two Commissioners explained, a complainant who has already recovered “must show harm beyond the award it has already received”—a matter of proof on the merits, not a pleading defect and not an issue of liability to be demanded before the completion of discovery. *Id.* at *13 (Blust, Chairman, and Dye, Comm’r, concurring). If a final, satisfied award on the same facts does not warrant dismissal, an adjudicated damages *request* in a parallel docket plainly cannot.

VI. OOCL’s Remaining Authorities Are Plainly Not Even Addressed to the Proposition They Ostensibly Support.

In a previous FMC proceeding, OOCL was reminded that they “are expected to read the entire case which they cite and [we]re cautioned against taking quotations from cases out of context” after they failed to “provide[] legal support for their contention[s]” and “[t]he cases cited by [them] [we]re not applicable to the facts” of that case. *20230930-DK-Butterfly-1, Inc. F/k/a Bed Bath & Beyond Inc., Complainant v. Orient Overseas Container Line Limited and OOCL(Europe) Limited, Respondents.*, 2024 WL 5080575, at *5. That behavior is on full display here. OOCL

boldly opens their first argument section with the declaration that “[t]he Commission’s longstanding precedent generally prohibits double recovery.” Motion at 4. Strangely, this is followed by both an in-line citation *and* a footnote with five more citations. The in-line citation is to *TCW*, which, as discussed above, does not support their claim. More concerning, of the five citations in the footnote, four of them *are not even addressed to the subject of double recovery* (or any subject of their motion):²

- 46 C.F.R. § 502.69 is the rule governing motions; it does not mention reparations, damages, or double recovery.
- 46 C.F.R. § 502.216 is a one-sentence rule about motions to supplement the record; it does not mention reparations, damages, or double recovery.
- *International Longshoremen’s Association v. Gateway Terminals, LLC*, FMC Docket No. 22-12 (FMC ALJ June 20, 2023), 2023 WL 4199207, cited at *1, is a two-page “Order on Respondents’ Motion for Leave to Supplement Record and Request to Extend Schedule for Complainant to File Reply”; it admits a port-authority declaration and moves a briefing deadline, and the words “double,” “reparations,” and “damages” do not appear anywhere in the entire document.
- *Hapag-Lloyd, A.G. and Hapag-Lloyd (America) LLC—Possible Violations of 46 U.S.C. § 41102(c)*, FMC Docket No. 21-09 (FMC ALJ Apr. 22, 2022) (Initial Decision), 2022 WL 1239377, is not a reparations case at all. It is a Commission-initiated enforcement proceeding, begun by an Order of Investigation and Hearing that named the Commission’s Bureau of Enforcement as a party and directed the proceeding to “determine whether Hapag is in violation of 46 U.S.C. § 41102(c) of the Shipping Act of 1984 by its practice of assessing detention charges.” *Id.* at *1 (quoting OIH at 5). In the decision’s own words, “[t]his case is about the detention fees imposed for eleven empty containers returned from one to eleven days after free time expired.” *Id.* There was no complainant, no claim for reparations, no damages appendix, and no parallel proceeding; there was nothing a second recovery could have duplicated. The page OOCL cites, *4, is a subsection captioned “2. Evidentiary Issues.” It admits the parties’ joint stipulations of fact, receives two verified statements and a demonstration by a Commission area representative over a hearsay objection while assigning that evidence limited weight, and admits a late-disclosed affidavit from a Hapag-Lloyd manager. The word “double” appears nowhere in the document.

² *Hangzhou* is apposite but does not support OOCL’s position, as discussed above.

To be clear, each of these authorities is entirely irrelevant to OOCL’s motion and their inclusion, especially to support a specific proposition such as “longstanding precedent generally prohibits double recovery,” raises questions. This carelessness forces the Presiding Officer and the Complainant to spend additional time confirming whether the statements made by OOCL are in fact supported by their citations. Putting that aside, OOCL’s reliance on incorrect citations simply telegraphs that they are unable to muster support for the proposition that double recovery is generally prohibited by the Commission.

CONCLUSION

The Motion asks the Presiding Officer to dismiss claims OOCL cannot identify, on the authority of decisions that hold the reverse, to prevent a double recovery that is not merely unripe but impossible. Should any actual duplication ever arise, Commission precedent supplies the answer—an adjustment tied to amounts NBG actually receives, *see* 2021 WL 794708, at *28; 2018 WL 4191529, at *14—and OOCL had, but did not use, the crossclaim and third-party practice that 46 C.F.R. § 502.62(b)(4) afforded it when all four carriers were respondents in a single docket before OOCL moved to sever. Motion at 1. Neither consideration supports dismissal now.

Complainant Nielsen & Bainbridge, LLC respectfully requests that the Presiding Officer deny the Motion in its entirety, including the alternative relief requested therein.

Dated: August 28, 2026

Respectfully submitted,
HUTH REYNOLDS LLP
/s/ Joshua Luke Rushing
J. Luke Rushing
jlrushing@huthreynolds.com
(202) 420-9628
Matthew J. Reynolds
reynolds@huthreynolds.com
Karl C. Huth
huth@huthreynolds.com
Gregory A. Crapanzano II

gcrapanzano@huthreynolds.com
41 Cannon Court
Huntington, NY 11743
Counsel for Complainant
Nielsen & Bainbridge, LLC

CERTIFICATE OF SERVICE

I hereby certify that I have this day caused to be served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing a copy to their counsel of record listed below:

BLANK ROME LLP
Keith B. Letourneau
Keith.Letourneau@BlankRome.com
Evan Spencer
Evan.Spencer@blankrome.com
717 Texas Avenue, Suite 1400
Houston, Texas 77002
Matthew Thomas
Matthew.Thomas@BlankRome.com
1825 Eye Street N.W.
Washington, DC 20006

JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
Kaya C. Massey
KMassey@JeffreyFenneman.com
Nicholas L. Webb
NWebb@JeffreyFenneman.com
700 12th St., NW, Suite 700
Washington, DC 20005
Counsel for Respondents Orient Overseas Container Line
Limited and OOCL (Europe) Limited

Dated: August 28, 2026

/s/ Joshua Luke Rushing
J. Luke Rushing
For Complainant Nielsen &
Bainbridge, LLC